

TENTATIVE RULINGS

FOR: July 16, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

Join by Video

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Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Dept. B Zoom

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Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

City of American Canyon v. Timothy J. Shea et al

20CV001254

**PLAINTIFF CITY OF AMERICAN CANYON’S MOTION FOR DETERMINATION OF
LEGAL ISSUES REGARDING SEVERANCE DAMAGES AND GOODWILL DAMAGES**

TENTATIVE RULING: The motion is GRANTED IN PART and MOOT IN PART. The motion is MOOT as to Issues 1, 4, 5, and 6 (identified below) and GRANTED as to Issues 2 and 3 (identified below).

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Plaintiff City of American Canyon ("Plaintiff" or "City") moves, pursuant to Code of Civil Procedure section 1260.040, subdivision (a),¹ for a determination of legal and evidentiary issues affecting determination of fair market value. Specifically, the City seeks the following six rulings (hereinafter referred to "Issues"):

- 1) The construction of a center median as part of the Green Island Road Reconstruction and Widening Project ("Project") resulting in the elimination of left turn access into and out of the subject property via the Green Island Road driveway, does not constitute a substantial impairment of access to the subject Property as a matter of law, and thus is not a compensable item of damage that may be considered when valuing severance damages in this action.
- 2) The construction of a center median as part of the Project, which will preclude trucks with a wheel-base of 40 feet or greater from egressing via the Green Island Road driveway, does not constitute a substantial impairment of access to the subject Property as a matter of law, and thus is not a compensable item of damage that may be considered when valuing severance damages in this action.
- 3) The temporary closure and temporary lane reductions on Green Island Road between Paoli Loop Road and Devlin Road, and the temporary traffic detour needed to construct the Project, do not result in a substantial impairment of access to the subject Property as a matter of law, and thus is not a compensable item of damage that may be considered when valuing severance damages in this action.
- 4) The construction of a center median as part of the Project resulting in the elimination of left turn access into and out of the subject property via the Green Island Road driveway, does not constitute a

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

substantial impairment of access to the subject Property as a matter of law, and thus is not a compensable item of damage that may be considered when valuing goodwill damages in this action.

- 5) The construction of a center median as part of the Project, which will preclude trucks with a wheel base of 40 feet or greater from egressing via the Green Island Road driveway does not constitute a substantial impairment of access to the subject Property as a matter of law, and thus is not a compensable item of damage that may be considered when valuing goodwill damages in this action.
- 6) The temporary closure and temporary lane reductions on Green Island Road between Paoli Loop Road and Devlin Road, and the temporary traffic detour needed to construct the Project, do not result in a substantial impairment of access to the subject Property as a matter of law, and thus is not a compensable item of damage that may be considered when valuing goodwill damages in this action.

B. LEGAL STANDARD

“If there is a dispute between plaintiff and defendant over an evidentiary or other legal issue affecting the determination of compensation, either party may move the court for a ruling on the issue. The motion shall be made not later than 60 days before commencement of trial on the issue of compensation. The motion shall be heard by the judge assigned for trial of the case.” (§ 1260.040, subdivision (a).)

Under the Eminent Domain Code, a property owner is entitled to the value of the part taken and any damage to the remainder of the property (i.e. the portion of the parcel not taken). (§ 1263.410.) Damage to the remainder, often referred to as “severance damages,” can come from (1) the severance of the remainder from the part taken, or (2) the construction and use of the project for which the property is taken in the manner proposed by the agency whether or not the damage is caused by a portion of the project located on the part taken. (§ 1263.420.) “[A] showing of substantial impairment is only required when the taking interferes with access to the property from a public street.” (*City of Livermore v. Baca* (2012) 205 Cal.App.4th 1460, 1467.)

C. DISCUSSION

Defendants Tim & Rhonda, LLC and FRG Waste Resources, Inc. J. Shea, (collectively “Shea”) oppose the motion on the grounds that (1) Issues 1, 4, 5, and 6 are moot because Defendants do not seek compensation related thereto, (2) Issue 2 is not subject to the substantial impairment test because Shea has a vested property right in the easement of egress that is being taken by the Project, and therefore, compensation is required, and (3) Issue 3 cannot be determined by this Motion because it requires expert appraisal opinions to determine whether the Project’s construction-related interference diminishes the use, utility, or value of the remainder parcel.

With respect to Issues 1, 4, 5, and 6, the Court orders the motion DENIED AS MOOT. The Court acknowledges the City's argument in Reply that Shea does not contest, and therefore concedes, these Issues. However, the Court understands Shea's argument in Opposition to be that those Issues are not at issue in this action and therefore a ruling on them would be inappropriate. Moreover, given that there is no apparent dispute over those Issues, section 1260.040, which requires a disputed issue, does not appear applicable.

With respect to Issue 2, the Court finds that Plaintiff has established that the construction of a center median as part of the Project, which will preclude trucks with a wheel base of 40 feet or greater from egressing via the Green Island Road driveway, does not constitute a substantial impairment of access to the subject Property as a matter of law because, prior to the Project, trucks with a wheel base of 40 feet or greater cannot *legally* egress via the Green Island Road driveway under Vehicle Code section 21460. (Declaration of Ramada ("Ramada Decl."), ¶ 6, Ex. B.) Shea does not dispute the evidence offered by the City. Shea does, however argue that Vehicle Code section 21460 allows a driver to cross a double yellow line when exiting a driveway. The Court disagrees. Vehicle Code section 21460 provides, in pertinent part:

(a) If double parallel solid white lines are in place, a person driving a vehicle shall not cross any part of those double solid white lines, except as permitted in this section or Section 21655.8.

...

(d) The markings as specified in subdivision (a), (b), or (c) do not prohibit a driver from crossing the marking if (1) turning to the left at an intersection or into or out of a driveway or private road...

This Vehicle Code section allows a driver to cross a double yellow line when turning left at an intersection, turning left into a driveway or private road or turning left out of a driveway or private road. It does not permit a driver to cross a double yellow line when turning right. This makes sense, not only given the plain language of the statute, but from a public safety standpoint.

Shea further argues that, "where, as here, the condemnor takes or extinguishes an *existing* access easement appurtenant to the property, the issue is not impairment of access in the abstract; it is the taking of a vested property right for which compensation is *required*." (Opp., 4:19-21, 5:22-6:4. Emphasis in original.) In other words, Shea argues that the very fact that it has a vested property right in the historic Green Island Road egress by trucks with a wheel-base of 40 feet or greater *mandates* compensation for the taking thereof, regardless of the outcome of the substantial impairment test.

The Court disagrees with Shea's suggestion that the substantial impairment test is inapplicable. However, even under Shea's standard, the result is the same. The vested right which Shea references is a property owner's "right to get into the street upon which the landowner's property abuts and from there, *in a reasonable manner*, to the general system of public streets." (Mem., 8:18-22 [emphasis added], citing *Breidert v. Southern Pac. Co.* (1964) 61 Cal.2d 659, 664.) A property owner, therefore, has no right in egressing his property by a maneuver that the law prohibits because that could not be considered reasonable. (Mem., 8:21-

23.) As discussed, Vehicle Code section 21460 makes it unlawful for trucks with a wheel-base of 40 feet or greater to egress via the Green Island Road driveway. Thus, contrary to Shea's assertion, he has failed to establish that he enjoys any vested right in this specific egress easement, for which Plaintiff's taking establishes his entitlement to compensation.

Based on the foregoing, the Court determines that the construction of a center median as part of the Project, which will preclude trucks with a wheel-base of 40 feet or greater from egressing via the Green Island Road driveway, is not a compensable item of damage that may be considered when valuing severance damages in this action.

With respect to Issue 3, Plaintiff shows that the temporary closure of Green Island Road as part of the construction of the Project will result in a 60-hour, weekend closure requiring vehicles travelling eastbound on Green Island Road to take an approximately 2.4-mile detour around the road closure to access the Property. (Ranada Decl., ¶ 11, Ex. D.) Vehicles travelling westbound on Green Island Road will still be able to access the Property as usual, and access to the Property via the Dodd Court Driveway will be accessible during the entire construction of the Project. (Ranada Decl., ¶ 10.) Plaintiff argues that the 2.4-mile detour and 60-hour duration is the type of circuitry of travel that courts have consistently held non-compensable. (Mem., 10:17-11:13 and Reply, 7:16-9:27, citing cases.)

Shea does not dispute the evidence regarding the extent of interference during construction of the Project. Yet, in a circular argument, Shea contends that the question of compensation for construction-related interference cannot be determined without an expert appraisal opinion to ascertain the interference's impact on the use, utility, and value of the remainder parcel. (Opp., 4:24-5:5, 7:14-21, 7:27-8:2 citing *Baca*, *supra*, 205 Cal.App.4th at 1465-66, §§ 1258.210 *et seq.*, 1263.410, 1263.420.) However, this disregards Plaintiff's main contention that there is no need for further discovery or expert evidence regarding compensation because, as a matter of law, the construction-related interference does not constitute substantial impairment. In response thereto, Shea only attempts to argue that the cases upon which Plaintiff relies are distinguishable from the facts here. (Opp., 8:3-9.)

In *Baca*, the Court of Appeal held that the trial court erred in excluding, by motion in limine, evidence in support of plaintiff's claim for temporary severance damages caused by removal of landscaping for one year and closure of two of four driveways on plaintiff's property for four months. (*Baca* at 1471-1472.) The Court then addressed plaintiff's claim for temporary severance damages caused by impaired access due to a ten-month traffic detour. The Court confirmed that prior to submitting evidence in support of the temporary impair access claim, the trial court must make a preliminary finding of substantial impairment. (*Baca* at 1473.)

The facts in the case at hand are dramatically different than those in *Baca*. Here, the undisputed evidence before the Court is that Green Island Road will be closed in the eastbound direction for one weekend. Cars traveling eastbound will need to take a 2.4 mile detour to access the Property. Access westbound on Green Island Road and via Dodd Court will not be impacted. For this reason, the Court finds that Plaintiff has shown the temporary closure and temporary lane reductions on Green Island Road between Paoli Loop Road and Devlin Road, and the temporary traffic detour needed to construct the Project, do not result in a substantial impairment

of access to the subject Property as a matter of law. (See *Metropolitan Water Dist. of So. California v. Campus Crusade for Christ, Inc.* (2007) 41 Cal.4th 954, 971 [“whether a taking has substantially impaired access to the remaining property is ‘a matter of law’ for the court”].)

Based on the foregoing, the Court determines that the interference described in Issue 3 is not a compensable item of damage that may be considered when valuing severance damages in this action. (*Id.* at 971-72 [noting that the substantial impairment determination is a predicate to an award of severance damages].)

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Dave Van Pelt v. Walmart, Inc. et al

25CV001124

TRANSFER OUT HEARING TO CONFIRM ACCEPTANCE OF CASE BY PLACER COUNTY

APPEARANCE REQUIRED. While Plaintiff filed a Notice of Deposit of Processing Fees for the Change of Venue on April 29, 2026, in which he represented that two checks were deposited for the processing and transfer fees payable to Napa Court and Placer Court, the Napa Court Clerk has recently advised that it has not received any such payment and therefore the transfer of the case has not yet commenced. Plaintiff’s counsel’s appearance is required to provide a status update on the transfer fee payment.

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McGrew Behavior Intervention Services, Inc. v. Israel Delgado

25CV001274

[1] DEFENDANT ISRAEL DELGADO’S MOTION TO STRIKE (ANTI-SLAPP)

APPEARANCE REQUIRED: The Parties are ordered to appear to inform the Court regarding the status of the proceedings and, if appropriate, to reset hearing on the instant motion.

[2] APPLICATION FOR ORDER TO SHOW CAUSE RE PRELIMINARY INJUNCTION

APPEARANCE REQUIRED: The Parties are ordered to appear to inform the Court regarding the status of the proceedings and, if appropriate, to reset the continued hearing on the instant motion.

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Lorena Zuniga Montelongo v. Bianco Winegrowing

25CV001906

DEFENDANT BIANCO WINEGROWING’S MOTION TO COMPEL ARBITRATION AND STAY PROCEEDINGS

TENTATIVE RULING: The matter is CONTINUED to August 12, 2026, at 8:30 a.m. in Dept. A. The Case Management Conference set for July 16, 2026 is also CONTINUED to August 12, 2026, at 8:30 a.m. in Dept. A to coincide with the hearing on this Motion.